1. This motion is **granted**.
2. The Court will execute the Proposed Order Granting Attorney's Motion to be Relieved as Counsel (Judicial Council Form MC-053) as submitted on February 3, 2026. The withdrawal is effective immediately.
3. Defendant's Counsel is ordered to serve a copy of the Order (MC-053) to Plaintiff by mail at his last known address, along with a change of address form, Judicial Council Form MC-040, instructing the client to fill-out and file the change of address form with the Court.
4. The Court schedules a Case Management Conference for December 1, 2026 at 8:30 a.m. Withdrawing Counsel is ordered to provide notice to Plaintiff of this CMC, and to inform Plaintiff that he/they are ordered to appear.
5. Withdrawing counsel shall file a proof of service form indicating that the client was served with the Court's Order (MC-053) and the Change of Address form (MC-040).
6. No appearance is required on June 3, 2026.

13. 9:00 AM CASE NUMBER: C25-00387
CASE NAME: MAYKELIN REYES VS. M & M BAKERY PRODUCTS, INC.
***HEARING ON MOTION IN RE: PRELIMINARY APPROVAL OF CLASS ACTION AND PAGA SETTLEMENT AGREEMENT AND CLASS NOTICE**
FILED BY: REYES, MAYKELIN MENDOZA
****TENTATIVE RULING:****
Summary

Plaintiff Maykelin M. Reyes' Motion for Preliminary Approval of Settlement is **granted** as set forth herein. No appearance is required on June 3, 2026.

Background and Settlement Terms

This case involves a wage-and-hour class action lawsuit filed by Plaintiff Maykelin Mendoza Reyes ("Plaintiff") against Defendant M & M Bakery Products, Inc. ("Defendant") The Plaintiff is seeking preliminary approval of a proposed $365,000 settlement to resolve claims related to alleged violations of California labor laws, including the California Private Attorneys General Act of 2004 (PAGA). The settlement was reached after extensive investigation, informal discovery, and arm's-length negotiations between the parties, which were facilitated through mediation by experienced neutral mediator Deborah Crandall Saxe, Esq.

The proposed settlement would provide monetary payments to approximately 236 Class Members who collectively worked an estimated total of 16,000 workweeks during the Class Period (February 7, 2021, to August 21, 2025). Additionally, 115 Aggrieved Employees under PAGA who worked an estimated total of 3,556 pay periods during the PAGA Period (January 19, 2024, to August 21, 2025) would receive payments. The settlement is structured as non-reversionary, meaning that under no circumstances will any of the funds be reverted to the Defendant.

The $365,000 gross settlement amount is all-inclusive and excludes Defendant's employer taxes, which will be paid separately. From this amount, $10,000 is allocated for PAGA penalties (35% to Aggrieved Employees and 65% to the Labor and Workforce Development Agency). The remaining Net Settlement Amount will be distributed after deducting payments for the Class Representative Service

Payment (up to $7,500), Attorneys' Fees ($121,666.67 or 1/3 of the Gross Settlement), Litigation Expenses (not to exceed $25,000), and Administrator Expenses to ILYM Group, Inc. (not to exceed $6,650).

Individual Class Payments will be calculated based on each Participating Class Member's pro rata share of the Net Settlement Amount according to the number of Workweeks worked during the Class Period. For tax purposes, these payments will be allocated with 33.33% designated for settlement of wage claims and 66.67% for settlement of claims for interest and penalties. Class Counsel has submitted the proposed Settlement Agreement to the Labor and Workforce Development Agency and believes the settlement is fair, reasonable, and adequate under California law.

Analyses

The primary determination to be made is whether the proposed settlement is "fair, reasonable, and adequate," under *Dunk v. Ford Motor Co*. (1996) 48 Cal.App.4th 1794, 1801, including "the strength of plaintiffs' case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction … to the proposed settlement." (See also *Amaro v. Anaheim Arena Mgmt., LLC, supra,* 69 Cal.App.5th 521.)

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy. (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, "[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter." (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that *Neary* does not always apply, because "[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutatory purpose." (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

Attorney fees

Plaintiff seeks one-third of the total settlement amount as fees, relying on the "common fund" theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is reasonable. It stated: "If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment." (*Id*., at 505.) Following typical practice, however, the fee award will not be considered at this time, but only as part of final approval.

Similarly, litigation costs and the requested representative payment of $7,500 for the Plaintiff will be reviewed at time of final approval. Criteria for evaluation of representative payment requests are discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807.

Ruling

The Court finds that the proposed settlement is sufficiently fair, reasonable, and adequate to justify *preliminary* approval. Counsel are directed to prepare an order reflecting this ruling, the other findings in the previously submitted proposed order, and to obtain a hearing date for the motion for final approval from the Department or Court clerk. No appearance is required on June 3, 2026.

Other dates in the scheduled notice process should track as appropriate to the hearing date. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented.

Plaintiffs' counsel are to submit a compliance statement one week before the compliance hearing date, which shall include the matters necessary to comply with Code of Civil Procedure section 384(b). Notwithstanding any contrary provision in the settlement agreement, 5% of the attorney's fees are to be withheld by the administrator until released by the Court after review of the compliance statement. The Court may issue a release through an unreported minute order without a hearing on the compliance statement.

14. 9:00 AM CASE NUMBER: C25-00694
CASE NAME: ELIZABETH HILAMAN VS. MCDONALD'S USA, LLC
HEARING ON SUMMARY MOTION FILED BY DEFT MCDONALDS CORPORATION
FILED BY:
TENTATIVE RULING:

Before the Court is Defendant McDonald's Corporation's Motion for Summary Judgment, or in the alternative, Summary Adjudication ("MSJ").

Defendant McDonald's Corporation's MSJ is **denied as moot**, as explained below.

Allegations of the Complaint

On September 11, 2023, Plaintiff went through the drive-thru of a McDonald's restaurant located at 4440 Lone Tree Way, Antioch, California (the "Store"). (¶¶ 7, 22.) She purchased a hot tea. (¶ 22.) As the tea was being passed to Plaintiff in her vehicle, the lid popped off the cup. (*Ibid.*) The hot liquid spilled onto Plaintiff's lap, causing burns. (*Ibid.*)

Plaintiff filed her complaint on March 12, 2025, against Defendants McDonald's Corporation and Bay Area Restaurant Management Corporation ("BARM"). McDonald's is alleged (on information and belief) to own, operated, manage, and control the Store. (¶ 7.) It is alleged that BARM is a franchisee of Defendant McDonalds, and that it also owned, operated, managed, and controlled the Store. (¶¶ 8-9.)

Based on the above, Plaintiff alleges two causes of action against moving Defendant McDonalds Corporation: (1) negligence, and (2) products liability.